

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/09/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C25-01323
CASE NAME: ROSE LENNON VS. PAVILIONS MANAGEMENT, LLC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE GUSTAVO MAGANA, ESQ.
FILED BY: LENNON, ROSE MARIE
TENTATIVE RULING:

Motion by Plaintiff's counsel to be relieved is granted.

Notice to Plaintiff: You will not have an attorney representing you. You may wish to seek legal

assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

2. 8:31 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court continues this hearing to 4/23 at 9:00 a.m.

3. 8:31 AM CASE NUMBER: C25-02337
CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN
***FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION**
FILED BY:
TENTATIVE RULING:

Given the Motion to Intervene, this Case Management Conference will be continued to July 1, 2026 to trail the Motion set on calendar that date.

4. 8:31 AM CASE NUMBER: C25-01323
CASE NAME: ROSE LENNON VS. PAVILIONS MANAGEMENT, LLC
***FURTHER CASE MANAGEMENT CONFERENCE TRAILING MOTION**
FILED BY:
TENTATIVE RULING:

5. 9:00 AM CASE NUMBER: C25-02823
CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court continues this hearing to May 7, 2026 at 9:00 a.m.

Law & Motion

6. 9:00 AM CASE NUMBER: C23-01524
CASE NAME: DENNIS BULLARD VS. APTIVE ENVIRONMENTAL, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**

FILED BY: BULLARD, DENNIS

TENTATIVE RULING:

Plaintiff Dennis Bullard moves for preliminary approval of his class action and PAGA settlement with defendant Aptive Environmental LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff Bullard on June 21, 2023 in Contra Costa County, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Coordination Plaintiff Kory Thornton filed a similar complaint in Sacramento County. Coordination procedures began in December 2024. Plaintiff Bullard seeks, through this process, to file a Second Amended Complaint adding Plaintiff Thornton as a named plaintiff and class representative, conditionally certify a settlement class, and preliminarily approve the settlement.

The settlement would create a gross settlement fund of \$3,750,00. The class representative payments to each plaintiff would be \$10,000. Attorney's fees would be \$1,312,500 (35% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator's costs will not exceed \$21,500. PAGA penalties would be \$200,000, resulting in a payment of \$150,000 to the LWDA and \$50,000 to the aggrieved employees. The net amount paid directly to the class members would be about \$2,161,500. The fund is non-reversionary. Based on the estimated class size of 3,048, the average net payment for each class member is approximately \$709.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering all "all claims . . . or causes of action . . . arising out of the claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Actions and ascertained in the course of the Actions" (Settlement, Par. 5.2.) Under relevant appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469

F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Pursuant to *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, the Court will utilize the “fair, reasonable, and adequate” standard applicable to class actions in this PAGA settlement. (*Id.*, at 64.) The Court will assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

At final approval, the Court will be seeking additional information sufficient to understand the scope of the claims at issue, as the Complaint was not specific enough for the Court to evaluate the merits.

C. Attorney fees

Plaintiff seeks 35% of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court notes that the proposed Class Notice contains reference to Department 39. That must be updated to Department 10 given the change in judicial officers presiding over this matter.

D. Conclusion

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. 9:00 AM CASE NUMBER: C23-02732
CASE NAME: IVORYA GENEVE VS. MIKUNI RESTAURANT GROUP, INC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Plaintiff Ivorya Geneve moves for final approval of her class action and PAGA settlement with defendant Mikuni Restaurant Group, Inc. The Court granted preliminary approval on November 24, 2025.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on October 26, 2023, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff filed a separate complaint alleging class action claims based on similar allegations, on February 16, 2024. Each complaint remains operative, and the settlement would settle each of them.

The settlement would create a gross settlement fund of \$2,250,000.00. The class representative payment to plaintiff would be \$10,000. Counsel's attorney's fees would be \$787,500 (35% of the settlement). Litigation costs amount to \$21,040.88. The settlement administrator (Apex) would be paid \$24,490. PAGA penalties would be \$200,000, resulting in a payment of \$150,000 to the LWDA.¹ The fund is non-reversionary.

The proposed settlement would certify a class of all individuals who are current or former non-exempt employees of Defendant, in the State of California during the Class Period, February 16, 2020 through October 31, 2024. The parties have identified 3,050 Class members, who worked 209,449 Workweeks during the Class Period. The proposed settlement also resolves claims of the PAGA employees, defined as all individuals who are current or former non-exempt employees of Defendant in the State of California during the PAGA Period of August 18, 2022 through October 31, 2022. The parties have identified 1,885 individuals as aggrieved PAGA Employees, who worked 55,828 Pay Periods during the PAGA Period. The highest individual settlement share to a Class Member is estimated to be \$1,412.95, the lowest \$5.74, and the average \$394.43. The highest individual settlement share to a PAGA Employee is estimated to be \$51.95, the lowest \$0.90, and the average \$26.53.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Class members cannot opt out of the PAGA portion of the settlement.)

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Uncashed checks would be cancelled and the amounts would be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering any claims "alleged or which could have been alleged based on the factual allegations in the Class Action Complaint, arising during the Class Period, under any federal, state, or local law" and "any and all claims arising from any of the factual allegations in the PAGA Letter and the PAGA Complaint, arising during the PAGA Period, for civil penalties under the Private Attorneys General Act of 2004, California Labor Code Sections 2698 et seq."

Informal discovery was undertaken prior to mediation. The matter settled after extensive arms-length negotiations, which included a mediation session with an experienced mediator.

¹ As the initial notice in this case preceded June 19, 2024, the older distributions of Labor Code section 2699 apply.

Counsel also has provided a summary of a quantitative analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies.

The LWDA was notified of the settlement.

Since the Court granted preliminary approval, notice was sent to all class members and PAGA employees. No objections have been received. No requests for exclusion have been received. 341 class notices were returned as undeliverable, with efforts resulting in re-mailing of 220 notices. At this time, 121 Class Notices are considered undeliverable after full efforts by Apex.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction . . . to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Pursuant to *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 64, the Court will apply the “fair, reasonable, and adequate” standard of class actions to this PAGA settlement. *Moniz* also requires the Court to assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek thirty-five percent of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 538 hours to date, all at rates from \$1,295 to \$750 per hour. This results in a lodestar of \$498,321, yielding an implied multiplier of 1.53. All counsel are experienced, and the rates may be justified, but it does appear that at least some of the work could have been done by less experienced counsel who bill at a lower rate. Thus, the lodestar calculation is somewhat higher than ordinarily would be justified.

The Court agrees that the lodestar cross check “does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, there may be some preclusion, but a total of about 538 hours, spread over two years, suggests that it was not substantial. Another consideration is the result obtained. It is certainly sufficient to warrant approval, but is not extraordinary. The issue is whether there is anything about this case that justifies a higher than usual fee. The case did not involve exceptional risk—this type of case nearly always settles. It is complex, but not especially novel, since the claims made here are common. Counsel try to flip the usual risk analysis, arguing that early resolution merits a higher multiplier. The Court does not understand this argument. Counsel will be well-compensated for their work, and the possibility that an attorney’s fee could be reduced somewhat smaller multiplier in a given case would not discourage counsel from taking this type of case.

The Court awards fees of \$675,000 (which is 30% of the size of the fund), and which still constitutes an implied multiplier of 1.35. The difference shall be awarded to the class.

The litigation costs are reasonable and are approved.

As to the requested representative payment of \$10,000, Ms. Geneve attests that he participated in the litigation, took the risk of liability for costs, and that her participation could hurt her chances of being hired by other employers. She estimates her time spent at 45-50 hours. She also provided a general release, although she does not indicate that she had any other claims with value. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request is approved.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in attorney’s fees as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs’ counsel are to submit a

compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: REYES, RALPH LOUIE
TENTATIVE RULING:

Plaintiff Ralph Reyes sued Defendant Nissan North America, Inc. under the Song-Beverly Act. After almost two years of litigation, the case resolved, with the Defendant agreeing to designate Plaintiff as the prevailing party and to pay the Plaintiff attorneys' fees and costs. Plaintiff now seeks a judicial award of attorneys' fees as costs, after the parties were unable to agree on an amount. The Court received no timely opposition.

Plaintiff has submitted a declaration outlining the work performed and the qualifications of the individuals performing the work, billing statements identified the hours expended, receipts or notations of costs expended, and several prior cases justifying the attorney fee rates requested. Plaintiff seeks his lodestar with a 0.2% multiplier.

The lodestar is \$41,318.50, which comes to \$49,582.20 after the multiplier. Plaintiff also seek \$6,283.30 costs. (There appears to be a mistake in the motion, at one point stating the amount as \$5,111.12. The Court believes the amount sought is the former.) The total amount requested is therefore \$55,865.50.

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.)

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10).)

Reasonable attorney's fees in cases, like this one, are generally determined by the "lodestar method." The calculation of hourly rates times the hours expended on the litigation is referred to as the "lodestar" amount, which may be enhanced under certain circumstances. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court has reviewed the rates, hours, multiplier, and costs and finds all to be reasonable. Plaintiffs' motion is therefore **granted**.

9. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RADIAN GENERATION LLC
TENTATIVE RULING:

Cross-Defendants demurred to and moved to strike Cross-Complainants Pristine Sun Corporation and Pristine Sun Fund 5 LLC's First Amended Cross-Complaint. Cross-Complainants have filed no timely opposition to any motion.

After giving months of notice, Cross-Complainants' Attorney was relieved as counsel on March 9, 2026. Notice was given to Cross-Complainants by the Court and by Plaintiff SolaRenewal and Cross-Defendants. They have not provided a substitution of counsel or requested any relief. Cross-Complainants are not permitted to represent themselves. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141.) This defect, however, is not necessarily fatal at this stage; the preferred practice of courts is to give reasonable opportunity to the corporation to hire legal counsel.

Cross-Defendants have filed Requests for Judicial Notice. Some of the requests involve the contracts at issue in this case. Cross-Defendants are correct that the Court may consider matters subject to judicial notice. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) That, however, does not mean that contracts that are extraneous to a complaint are subject to judicial notice. The existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452. (*Gould v. Maryland Sound Industries, Inc.* (Cal. App. 2d Dist. 1995), 31 Cal. App. 4th 1137.) The Requests for Judicial Notice are therefore **denied** as to contracts and agreements, but **granted** as to Secretary of State Documents. The Court is only considering documents that are properly subject to these motions.

Demurrers

Cross-Defendant Radian Generation LLC (Radian) demurs as to the Fifth and Seventh Causes of Action, Cross-Defendants SolaRenewal LLC; New Island Capital Management, Inc. (NICM Inc); New Island Capital 9 Management LLC (NICM LLC); New Island Capital IV LP (NIC IV); and Spring Partners, LLC (Spring Partners) demur as to all causes of action, and Cross-Defendant Grounded Capital, LLC (Grounded Capital) demurs as to the Third, Fourth, Fifth, and Seventh Causes of Action. For the reasons stated briefly below, the demurrers are sustained with leave to amend on all grounds.

Entities

There are two Cross-Complainants. According to the Secretary of State, Pristine Sun Fund 5, LLC (PSF), is a suspended limited liability company. (Fields Decl Ex. 4.) Until PSF returns to good standing, it cannot bring claims. (*Kaufman & Broad Communities v. Performance Plastering, Inc.* (2006) 136 Cal.App.4th 212, 217.) The Court will consider the remaining issues, however, as *Kaufman* emphasizes that upon regaining good standing, previous actions become valid. The other Cross-Complainant is Pristine Sun Corporation (PSC), which was a subcontractor to PSF and had no contract with the Cross-Defendants.

First Cause of Action – Breach of Contract

As the Cross-Complainants were not parties to the contract at issue, do not adequately allege rights under the contract, and fail to allege facts sufficient to support a breach, this claim fails.

Second Cause of Action – Implied Covenant of Good Faith and Fair Dealing

As the Cross-Complainants do not allege facts sufficient to demonstrate the formation of a binding contract or agreement for services or payment, this claim fails.

Third Cause of Action – Breach of Fiduciary Duty

Cross-Complainant PSC was not a member of the SolaRenewal agreement, and therefore no fiduciary duty attaches. PSF has failed to allege any facts other than conclusory statements sufficient to establish a fiduciary duty by Cross-Defendants. Additionally, it fails to explain how the waiver of fiduciary duties is not dispositive. If the actual LLC member expressly owes no fiduciary duty, then non-party supposed affiliated or related entities to that LLC member would not owe fiduciary duties either. This claim therefore fails.

Fourth Cause of Action – Fraudulent Inducement

Cross-Complainants fail to state any of the allegations of fraud with particularity. The allegations fail to demonstrate fraud. This claim therefore fails.

Fifth Cause of Action – Intentional Interference with Prospective Economic Advantage

Cross-Complainants fail to allege the Cross-Defendants' requisite knowledge. Additionally, there is nothing alleged beyond non-cooperation in business dealings. Finally, the allegations do not show that any Cross-Defendant "engaged in conduct that was wrongful by some legal measure other than the fact of interference itself." (*Della Penna v. Toyota Motor Sales, USA*, 11 Cal.4th 376, 393 (1995).) This claim therefore fails.

Sixth Cause of Action – Promissory Estoppel

Cross-Complainants fail to allege promises by Cross-Defendants to cross-complainants that were clear, ambiguous, or actionable, as required. This claim therefore fails.

Seventh Cause of Action – Conspiracy

Civil conspiracy requires: (1) the formation and operation of a conspiracy; (2) wrongful conduct in furtherance of the conspiracy; and (3) damages arising from the wrongful conduct. (*Kidron v. Movie Acquisition Corp.*, 40 Cal.App.4th 1571, 1581 (1995); see *Spencer v. Mowat*, 46 Cal.App.5th 1024, 1036 (2020) ("To establish conspiracy, a plaintiff must allege that the defendant had knowledge of and agreed to both the objective and the course of action that resulted in the injury, that there was a wrongful act committed pursuant to that agreement, and that there was resulting damage").) Cross-Complainants fail to allege a separate, stand-alone tort action, or substantive allegations of conspiracy. This claim therefore fails.

Motions to Strike

Cross-Defendants also move to strike punitive and exemplary damages. These motions are moot, given the ruling on the demurrer. The Court would, however, also **grant** these motions. There are insufficient facts in the First Amended Cross-Complaint to support oppression, fraud, or malice on the part of Cross-Defendants, let alone with particularity. Speculative and conclusory statements of

participation in group conduct does not suffice.

The requests for punitive and exemplary damages are also not specific with respect to the causes of action or facts alleged.

Leave to Amend

Given the above, the Court **sustains** the demurrers. While leave to amend should not be granted where that would not change the result, because of the status of the Cross-Complainants, it is difficult to tell whether competent counsel could rebut the conclusions the Court has come to above. The only reason the Court is granting leave to amend is that there is stated judicial interest in ensuring that the Cross-Complainants have an opportunity to hire counsel and pursue their interests. That interest is not unlimited. Cross-Complainants have 30 days to hire counsel and amend.

10. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED CROSS-COMPLAINT**
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

11. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: SOLARENEWAL LLC
TENTATIVE RULING:

See line 10.

12. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: TO FIRST AMENDED CROSS-COMPLAINT
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING:

See line 10.

13. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
***HEARING ON MOTION IN RE: TO FIRST AMENDED CROSS-COMPLAINT**
FILED BY: GROUND CAPITAL, LLC
TENTATIVE RULING:

See line 10.

14. 9:00 AM CASE NUMBER: C24-01555
CASE NAME: CARMEN PRIVAT-GILMAN VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: RECONSIDERATION UNDER CCP 1008(B) AND CALIFORNIA RULES OF COURT, RULE 2.257(C)(1)**
FILED BY: PRIVAT-GILMAN, CARMEN
TENTATIVE RULING:

Plaintiffs filed a complaint on June 14, 2024 for issues arising out of events on March 17, 2023. Unfortunately for Plaintiffs, counsel filed the wrong complaint. On June 17, 2024, Plaintiff attempted to efile an amended complaint with the correct information. The clerk rejected that filing because the pleading was not signed. Plaintiffs refiled the complaint the next day. On June 28, 2024, the Court denied Plaintiffs' application to have the document deemed filed nunc pro tunc to June 17, 2024. Plaintiffs now seek reconsideration, arguing that he and the Court did not know about California Rule of Court 2.257(c)(1), which permits electronic filing of complaints without signatures. He argues that this one day is essential given the statute of limitations.

Even if the Court grants the relief requested, Plaintiffs are outside of the statute of limitations. First, Code of Civil Procedure does not simply append 90 days to the end of the one year statute of limitations in cases such as this one. Instead, it states that plaintiffs must give 90 days of intent to sue before filing. There is only one single situation in which the statute of limitations is tolled: "(d) If the notice is served within 90 days of the expiration of the applicable statute of limitations, the time for the commencement of the action shall be extended 90 days from the service of the notice." That is not the circumstance here.

Moreover, June 17, 2024 is two days beyond one year plus 90 days. March 17, 2023 plus one year plus 90 days is June 15, 2024.²

Plaintiffs have articulated no change in facts or law that merits a motion for reconsideration. Moreover, Plaintiffs' request, if granted, would have no material effect on this case. For that reason, it is **denied**.

15. 9:00 AM CASE NUMBER: C24-03209
CASE NAME: JENISE HAMBLIN VS. DOES 1 THROUGH 50 INCLUSIVE
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES**
FILED BY: HAMBLIN, JENISE KAY
TENTATIVE RULING:

Pursuant to stipulation by the parties and order from the Court, this motion has been continued to August 27, 2026.

² Plaintiffs also make incomprehensible arguments about the two hours between Steve Gilman's death and March 18, 2023. The statute of limitations was not one day but rather one year.

16. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NATIONSTAR MORTGAGE LLC
TENTATIVE RULING:

The Court continues the hearing on this motion to 4/23 at 9:00 a.m.

17. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: MERS
TENTATIVE RULING:

The Court continues the hearing on this motion to 4/23 at 9:00 a.m.

18. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN ALT JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

After the Court continued the hearing to this date in order to allow parties to meet and confer, parties stipulated to continue their meet and confer deadline to May 14th. Accordingly, the hearing is continued to May 28, 2026 at 9:00 a.m. in this Department. By May 21st, demurring defendants shall file a supplemental declaration concerning the meet and confer process and any agreements reached therein.

19. 9:00 AM CASE NUMBER: C25-01774
CASE NAME: AMIN ANSARI VS. FUTURE AUTOMOTIVE CONCORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: FUTURE AUTOMOTIVE CONCORD, INC.
TENTATIVE RULING:

The Motion of Defendants Future Automotive Concord, Inc. and Future Ford of Concord, LLC to Compel Arbitration is granted.

This case is stayed pending the completion of arbitration. (Code Civ. Proc. § 1281.4.)

The case management conference scheduled for May 4, 2026 at 8:30 a.m. is vacated. The Court sets an arbitration status conference for December 3, 2026 at 9:00 a.m. The parties shall submit a joint statement as to the status of the arbitration at least 10 court days before the status conference.

Defendants shall prepare the order and serve and file notice of entry of order.

I. Background

On June 20, 2025, Plaintiff Amin Ansari filed this action against Defendants Future Automotive Concord, Inc. and Future Ford of Concord, LLC. Plaintiff alleges that Defendants collectively own, operate, and manage a car dealership in and around Concord, California, and employed him in the role of General Sales Manager from November 10, 2023 until May 30, 2024 when he was terminated. Plaintiff brings causes of action against Defendants for failure to reimburse business expenses, disability discrimination, failure to take all reasonable steps to prevent or correct discrimination in violation of FEHA, failure to accommodate disability, failure to engage in the interactive process, and wrongful termination.

As part of an onboarding process, Plaintiff signed an arbitration agreement twice: first electronically on November 7, 2023, and again in hard copy with a wet signature on November 10, 2023 (the "Agreement"). The Agreement requires that all claims arising out of the employment context be pursued exclusively through binding arbitration, including claims under FEHA, the ADA, and Title VII, with limited exceptions for claims before the NLRB, workers' compensation and EDD claims, and, at the employee's election, sexual harassment and sexual assault disputes. The Agreement provides that it is governed by the Federal Arbitration Act ("FAA"), supplemented by the California Arbitration Act ("CAA") to the extent consistent with the FAA.

On October 9, 2025, Defendants filed this motion to compel arbitration. Plaintiff opposes.

II. Legal Standard

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) Accordingly, whether an agreement is governed by the CAA or the FAA, courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (*Id.* at 9; see also *Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 971-972.) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.'" (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247.)

"Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists." The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Engalla, supra*, 15 Cal.4th 951, 972.) It is then the plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (*Ibid.*)

III. Analysis

The existence of the arbitration agreement, its coverage of Plaintiff's claims, and the applicability of the FAA are undisputed. The issues presented are whether Defendants waived their right to compel arbitration and whether the Agreement is unconscionable.

A. Waiver

"To establish waiver under generally applicable contract law, the party opposing enforcement of a

contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.] Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.] Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584; see also *Morgan v. Sundance, Inc.* (2022) 596 U.S. 411, 419 [Under the FAA, the waiver inquiry focuses on the conduct of the party seeking to enforce the arbitration agreement and asks whether the party "knowingly relinquish[ed] the right to arbitrate by acting inconsistently with that right"].)

Plaintiff contends that Defendants waived the right to arbitration because after he sent his prelitigation demand for arbitration on May 13, 2025, Defendants refused service of the demand, took no action, and said nothing in response, which prompted Plaintiff to file this action. (Martinez Decl. ¶¶ 3-6 and Exhs. B, C.)

Defendants' argue that failure to respond to a prelitigation demand for arbitration is not inconsistent with an intent to demand arbitration once litigation was filed. They state that upon receiving Plaintiff's arbitration demand, they retained counsel and reached out to Plaintiff on June 25, 2025. After the complaint was served on July 10, 2025, Defendants initiated arbitration discussions on July 18, confirming with Plaintiff's counsel that no arbitration had been filed. On August 15, 2025, Defendants provided Plaintiff with a copy of the signed Agreement and proposed stipulating to dismiss the complaint and submit the matter to arbitration. Receiving no response, Defendants filed their Answer on August 28, 2025, asserting the arbitration agreement as an affirmative defense. On September 15, 2025, Defendants again proposed stipulating to arbitrate and requested legal authority for Plaintiff's waiver position. On September 19, Defendants cited the Agreement's meet and confer provision and requested that both sides exchange lists of proposed arbitrators. On September 25, Defendants provided their proposed list. Defendants neither propounded nor responded to any discovery. (Declaration of Yuri Khadka ¶¶ 3-17, Exhs. A-P.)

Plaintiff cites no authority for the proposition that failing to initiate arbitration proceedings in response to a prelitigation demand constitutes waiver. Even if Defendants' failure to respond directly to the demand could be viewed in isolation as inconsistent with an intent to arbitrate, the record as a whole does not establish waiver by clear and convincing evidence. The Court therefore finds that Defendants have not waived their right to arbitrate.

B. Unconscionability

Unconscionability refers to "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal. 4th 899, 910 (*Sanchez*)). Unconscionability has both procedural and substantive elements and "is a valid reason for refusing to enforce an arbitration agreement." (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Both procedural and substantive unconscionability must be present before a court may refuse to enforce a contract, but they need not be present to the same degree. (*Ibid.*) A sliding scale applies such that "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable,

and vice versa." (*Ibid.*)

1. Procedural Unconscionability

Plaintiff contends the Agreement is procedurally unconscionable because it is a contract of adhesion and he had no meaningful opportunity to negotiate it. This claim involves the oppression aspect of procedural unconscionability.

"Arbitration contracts imposed as a condition of employment are typically adhesive, and the agreement here is no exception. The pertinent question, then, is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).)

"The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney." (*Id.* at pp. 126-127.)

When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability. (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 174-175 [procedural unconscionability limited where arbitration provisions were in a stand-alone two-page document titled "MANDATORY ARBITRATION POLICY"]; *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245 [procedural unconscionability limited where employee knew about arbitration provision and was not manipulated into signing it].)

Plaintiff does not identify any circumstances which created additional pressure. In *OTO*, for example, the employer presented the employee with the arbitration agreement during the workday and the employee lost pay for the time spent reviewing it. The employer representative waited while the employee signed, creating an expectation of immediate execution and making it extremely difficult to consult an attorney. (*OTO, supra*, 8 Cal.5th at pp. 127-128.)

Here, Plaintiff was provided access to the arbitration agreement through HRHotlink before his first day of work and signed it electronically on November 7, 2023 using his personal username and password, presumably in a setting of his own choosing, and no time pressure. He says nothing about the circumstances surrounding that first signing and does not claim he was rushed, pressured, or prevented in any way from reviewing the agreement before executing it electronically. Although he was asked to sign a printed copy on November 10, his first day of work, he had already had the opportunity to review the Agreement days earlier.

Plaintiff also addresses the physical aspects of the Agreement as being oppressive. The Court in *OTO* found surprise where the agreement was "a paragon of prolixity, only slightly more than a page long but written in an extremely small font," with a "single dense paragraph covering arbitration requir[ing] 51 lines," text that was "visually impenetrable" and challenged "the limits of legibility." (*OTO, supra*, 8 Cal.5th at p. 128.)

The requirement of surprise is not satisfied. The Agreement is neither hidden in a prolix form, nor

drafted in fine print. It is a four-page, separately formatted, standalone document with numbered paragraphs, bold headings, and prominent all-caps warnings at both the top and bottom of the document. The Agreement is clearly titled "HANDBOOK ACKNOWLEDGMENT AT WILL AND ARBITRATION AGREEMENT" in boldface, all-caps type and opens with the following bold heading:

IMPORTANT— READ CAREFULLY

THIS AGREEMENT CONTAINS AN AT-WILL AGREEMENT AND BINDING ARBITRATION AGREEMENT

(Pelzl-Sisneroz Decl., Exh. C.)

The Agreement concludes with the following all-caps language immediately above the signature line:

I UNDERSTAND THAT I AM GIVING UP THE RIGHT TO TRIAL BY JURY, BY A SITTING TRIAL COURT JUDGE AND/OR BY FINAL ADJUDICATION THROUGH AN ADMINISTRATIVE PROCESS BY AGREEING TO BINDING ARBITRATION.

MY SIGNATURE BELOW ATTESTS TO THE FACT THAT I HAVE BEEN GIVEN AN OPPORTUNITY TO READ AND CONSIDER THIS AGREEMENT, AND THAT I HAVE READ, UNDERSTAND, AND AGREE TO BE LEGALLY BOUND BY ALL OF THE ABOVE TERMS. I AGREE THAT THE COMPANY IS BINDING ITSELF TO THIS AGREEMENT BY PRESENTING THIS AGREEMENT TO ME FOR SIGNATURE.

DO NOT SIGN UNTIL YOU HAVE READ THE ABOVE ACKNOWLEDGMENT AND AGREEMENT.

(*Id.*)

The Court in *OTO* also found surprise because the arbitration agreement contained complex sentences, statutory references, and legal jargon, including one sentence that was 12 lines long. There are no such lengthy sentences in the Agreement here. While it does contain statutory references, those references are necessary to define the claims covered by arbitration. The Agreement uses clear language to describe the binding nature of the arbitration obligation and the waiver of the right to bring claims in court and to have a trial by jury, a point made prominently in the all-caps language quoted above.

The Court finds only a minimal degree of procedural unconscionability due to the adhesive nature of the Agreement.

2. Substantive Unconscionability

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh." (*Carmona v. Lincoln Millennium Car Wash, Inc.*, (2014) 226 Cal.App.4th 74, 85.) The "paramount consideration" is the mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.) An arbitration agreement "lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences." (*Armendariz, supra*, 24 Cal.4th at p. 120.)

a. Mutuality

Plaintiff first argues the Agreement is substantively unconscionable because it lacks mutuality. Plaintiff asserts this argument with respect to both Exhibit B to the Pelzl-Sisneroz Declaration, the arbitration agreement he signed as part of the application process, and Exhibit C, the handbook acknowledgment he signed upon hire. Defendants move to compel arbitration under Exhibit C, not the application-stage agreement, so the enforceability of Exhibit B is not at issue.

Plaintiff's mutuality argument with regard to Exhibit C appears to be the following: the Agreement refers to "the Company" as the counterparty throughout but never identifies which entity "the Company" is. The signature block has a space for a company representative to sign, and the Agreement is signed by "Tamara Watkins." Plaintiff appears to assert that because no representative of a named entity signed it, there is no way to know which entity is actually bound. And if no specific entity is bound, the Agreement lacks mutuality because it obligates Plaintiff to arbitrate all of his claims but does not actually obligate any identifiable counterparty to do the same.

The Agreement is mutual on its face. It states: "the Company agrees to pursue any claims it might have against me that currently exist or that may arise in the future exclusively through binding arbitration," mirroring the identical obligation imposed on Plaintiff. (Pelzl-Sisneroz Decl., Ex. C.) The Agreement further provides that "[o]ur agreement to arbitrate includes any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future," and that "[o]ur agreement to submit all claims to binding arbitration includes any claims that either of us may have against any third-party beneficiaries." The Agreement recites that "[b]y agreeing to binding arbitration, we waive our rights to any and all claims decided in an administrative hearing, in a judge/bench trial, and/or in a jury trial." Repeated use of "we," "our," and "us" throughout the Agreement, including the statement that "Company is binding itself to this agreement by presenting this agreement...for signature" demonstrates that both parties waived the same rights and are bound to arbitrate claims arising out of the employment relationship.

Plaintiff relies on *Najarro v. Superior Court* (2021) 70 Cal.App.5th 871 to support his argument that the Agreement lacks mutuality, but that case is distinguishable. The lack of mutuality discussion in *Najarro* concerned "Version One" of two arbitration agreements at issue, which had two defects: none of the real parties in interest signed it, and it did not even purport to identify who the employee's counterparty was supposed to be. Neither defect is present here. Tamara Watkins signed the Agreement as the authorized company representative, and it expressly states that the Company binds itself by presenting the agreement for signature. An authorized representative can only act on behalf of a specific principal, and the Pelzl-Sisneroz declaration identifies that principal as Future Automotive of Concord, the entity that employed Plaintiff and deposited the Agreement in his file.

b. Attorney Fees

Plaintiff next argues the Agreement is substantively unconscionable because it "does not provide that the prevailing party shall be entitled to recover attorneys' fees," thereby waiving Plaintiff's right to statutory fees under FEHA. Under FEHA, an arbitration agreement cannot serve as a vehicle for the waiver of statutory rights, including the right to attorney fees. (*Armendariz, supra*, 24 Cal.4th at 101; Gov. Code, § 12965(c)(6) [prevailing party may be awarded reasonable attorney's fees and costs, though a prevailing defendant is entitled to fees only if the action is frivolous].)

The Agreement provides that the arbitrator shall have "the authority to fashion the arbitration proceeding and the award to preserve any special protections afforded by the laws governing the claims," and "shall apply only the law governing the claims and defenses pleaded." (Pelzl-Sisneroz

Decl., Exh. C, ¶ 8.) These provisions require the arbitrator to follow governing law in fashioning any award, including FEHA's fee-shifting provision, and do not operate to deprive Plaintiff of any unwaivable statutory remedy.

IV. Disposition

Plaintiff has not shown a waiver of the right to arbitrate. The Court finds only minimal procedural unconscionability arising from the adhesive nature of the Agreement, and no substantive unconscionability. Because Plaintiff has failed to establish both elements, an unconscionability defense fails. The motion is therefore granted, and Plaintiff's claims are ordered to arbitration. This action is stayed pending the completion of that process.

20. 9:00 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION IN RE: ORDER GRANTING PROPOSED INTERVENOR GREAT WEST CASUALTY COMPANY LEAVE OF COURT TO INTERVENE**

FILED BY: GREAT WEST CASUALTY COMPANY

TENTATIVE RULING:

Great West Casualty Company seeks leave of the Court to intervene in this matter, pursuant to Code of Civil Procedure section 387. The Court received no opposition.

Plaintiffs Jose Barrera Galeana and Leticia Perez-Romo filed a lawsuit arising out of a motor vehicle collision on November 16, 2023. Named Defendants are Brant Aderman and Brant Aderman Trucking, LLC. The vehicle driven by Defendant Aderman was owned by Defendant Aderman Trucking, and was insured by the proposed Intervenor, Great West. Since the incident, Defendant Aderman Trucking was administratively dissolved by California's Secretary of State. While Defendant Aderman has filed an Answer in this matter, Defendant Aderman Trucking has not, and Great West seeks to intervene so it can defend this lawsuit on Defendant Aderman Trucking's behalf.

Great West has attached a proposed Answer in Intervention. Code Civ. Pro. § 387(c). Great West has moved in a timely manner. Code Civ. Pro. § 387(d). Finally, Great West asserts a valid reason for intervention. Code Civ. Pro. § 387(d)(1)(B). The Motion is therefore **granted**.

21. 9:00 AM CASE NUMBER: C25-02823

CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: ALTOBAR, JEARALDIN

TENTATIVE RULING:

The Court continues the hearing on this motion to May 7, 2026 at 9:00 a.m.

22. 9:00 AM CASE NUMBER: N25-2373

CASE NAME: PETITION OF:WHITE GATE HOMEOWNERS CORPORATION

HEARING IN RE: PETITION SET AT EX-PARTE REQUEST

FILED BY:

TENTATIVE RULING:

White Gate Homeowners' Corporation has filed a Petition to Reduce Required Voting Percentage for Amendment of CC&Rs Pursuant to Civil Code § 4275 and Corporations Code § 7515. White Gate filed an ex parte application setting forth the manner in which that notice would be served, which was granted. In the course of the ex parte process, White Gate represented that it received communications regarding potential opposition from a homeowner to the underlying petition. After the passage of two additional months, however, White Gate has received no such opposition to its Petition.

White Gate has satisfied all statutory requirements. There being no opposition, the Petition is **granted**. The restated CC&Rs (Exhibit F attached to Ash Decl.) may be approved on the basis of the affirmative votes already received, subject only to the requirement that the Restated CC&Rs be executed and acknowledged by Petitioner's treasurer and secretary and recorded in the Office of the Contra Costa County Recorder, together with a copy of the Court's order.